

25STCV05328 25STCV05328

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Case Number: 25STCV05328 Hearing Date: September 10, 2026 Dept: 731

[TENTATIVE] ORDER RE: PLAINTIFF

SANDRA CASTILLO'S MOTION TO COMPEL THE CONTINUED DEPOSITION OF DEFENDANT YOUNG MEN'S CHRISTIAN ASSOCIATION OF GREATER LONG BEACH'S PERSON MOST KNOWLEDGEABLE AND THE PRODUCTION OF DOCUMENTS; REQUEST FOR MONETARY SANCTIONS AGAINST DEFENDANT AND ITS COUNSEL OF RECORD IN THE AMOUNT OF \$ \$3,250.00 (C.C.P. §§ 2025.450, 2025.480, 2023.010, 2023.030)

Moving Party: Plaintiff, Sandra Castillo

Opposing Party: Defendant, Young Men's Christian Association of Greater Long Beach

Notice: OK

Background Facts

Plaintiff Sandra Castillo sues

Defendants Young Men's Christian Association of Greater Long Beach ("YMCA"), Claudia Mendoza ("Mendoza"), Alvaro Rodriguez ("Rodriguez"), and Does 1-100 pursuant to a February 25, 2025, Complaint alleging statutory and common law claims arising from Plaintiff's employment and termination of employment with Defendant the YMCA.

Now before the Court is Plaintiff's

motion for a continued deposition of the YMCA's person most qualified ("PMQ") in this action, who Plaintiff first deposed March 30, 2026.

Motion to Compel

Deposition and Request for Sanctions

a. Motion

to Compel Deposition

i.

Legal Standard

Code of Civil Procedure section

2025.480 authorizes a motion to compel when a deponent fails to answer a question or produce documents, electronically stored information, or tangible things identified in a deposition notice or subpoena, and subdivision (a) expressly provides that the party seeking discovery may request an order compelling such an answer or production. (Code Civ. Proc., § 2025.480, subd. (a).)

ii.

Discussion

Summarized, Plaintiff's motion

seeks an order compelling the YMCA's PMQ to again appear for a deposition, specifically because during the first deposition session, the YMCA did not produce any documents as requested in the notice for the March 30th deposition, thus failing to respond to the production request and foreclosing Plaintiff's ability to ask questions regarding those documents and reliance thereon.

Moving to the merits, after review,
the Court finds in favor of Plaintiff.

First, the Court finds that the

requests for production are relevant to this action, as detailed in Plaintiff's papers. Notably, it does not appear from the YMCA's papers that the YMCA objects to the production requests as connected to the categories of examination in the deposition notice, instead making arguments for lack of particularity, discussed below. Such briefing supports the conclusion that if the categories of examination were 'fair game' at the initial March 30, 2026, deposition, so should any derivative production requests, as appear here in Requests for Production, Nos. 1-22, contained in the January 26, 2026, notice of deposition. (See Motion, Burga Decl., ¶ 9, Ex. 1.)

Second, the Court determines that sufficient meet and confer efforts preceded the filing of Plaintiff's motion, as required by Code of Civil Procedure section 2025.480, subdivision (b). Specifically, on the very day of the deposition, Plaintiff initiated a meet and confer process to obtain a second deposition session to depose the PMQ on production and documents related thereto, a process that is recognized in the opposition papers—irrespective of whether the YMCA believes that such efforts were sufficient. (See Motion, Burga Decl., ¶¶ 2-7, Exs. 1-2; Opposition, Valenti Decl., ¶¶ 2-29.)

Third, the Court determines that there is no basis in the record for the Court to determine that a Volume II deposition notice was required by statute here. (See Opposition, pp. 5-7.) Nothing in the language of section 2025.480 (rather than 2025.450, as focused on in the opposition papers) requires that a notice of deposition be served after a deponent has failed to answer questions or produce documents responsive to the original deposition notice.

Fourth, the Court determines that the requests for production in the January 26, 2026, deposition notice were drafted with sufficient particularity as required by the Code of Civil Procedure. Specifically, the 22 requests for production are stated individually and perfectly refer to the categories of examination as the anchor for each production request.

Fifth, there is no evidence before the Court to determine that any documents were produced by Defendants on or before March 30, 2026, in response to the 22 requests for production in the January 26, 2026, notice of deposition, e.g., a list akin to a 2031.280 list separately identifying which of the documents served on Plaintiff by the YMCA were in fact responsive to each and everyone of the 22 production requests at issue.

Last, the Court rejects the argument that Plaintiff's motion should be denied based on a defective separate statement. Even if the separate statement could have been more artfully drafted, the moving papers as a whole satisfy California Rules of Court, rule 3.1345(b) to the satisfaction of this Court.

Conclusion

Plaintiff's motion to compel
deposition is accordingly GRANTED.

Defendant Young Men's Christian

Association of Greater Long Beach is ORDERED to submit to a resumption of the
deposition of its PMQ within 30 days of service of this Order. No time limit is
imposed, this being an employment case. (Code Civ. Proc., § 2025.290, subd.
(b)(4).)

Defendant Young Men's Christian

Association of Greater Long Beach SHALL produce responsive documents no later
than three calendar days prior to the day on which the deposition is set to
resume.

b. Request
for Monetary Sanctions

i.
Legal
Standard

The court shall impose a monetary
sanction under Chapter 7 (commencing with Section 2023.010) against any party,
person, or attorney who unsuccessfully makes or opposes a motion to compel an
answer or production, unless it finds that the one subject to the sanction
acted with substantial justification or that other circumstances make the
imposition of the sanction unjust. (Code Civ. Proc., § 2025.480, subd. (j).)

The court may award sanctions under
the Discovery Act in favor of a party who files a motion to compel discovery,
even though no opposition to the motion was filed, or opposition to the motion
was withdrawn, or the requested discovery was provided to the moving party
after the motion was filed. (Cal. Rules of Court, rule 3.1348, subd. (a).)

ii.
Discussion

After review, the Court finds in

favor of Plaintiff and against the YMCA.

Specifically, the YMCA failed to produce documents at deposition, and when it represented that it had previously produced documents, failed to identify those with particularity. This conduct supports sanctions. At the same time, imposition of the full measure of sanctions would be unjust given the opposition's clear indication of good faith rebuttals to Plaintiff's request for a second deposition session.

Accordingly, the Court finds that half of the requested sanctions, as properly supported by a declaration from counsel (Motion, Burga Decl., ¶ 8), may be awarded.

Conversely, the Court determines that no bases exist to support the request for monetary sanctions in the YMCA's opposition, particularly given the result of the motion before the Court.

iii.

Conclusion

Plaintiff Sandra Castillo's request for monetary sanctions is accordingly GRANTED.

Defendant Young Men's Christian Association of Greater Long Beach is ORDERED to remit payment of \$2,360.00 to Plaintiff's counsel by mail within 30 days of notice of this Order.

Defendant Young Men's Christian Association of Greater Long Beach's opposition request for monetary sanctions is DENIED.

Plaintiff Sandra Castillo is ordered to give notice.

Parties who intend to submit on this tentative must send an email to the court at smcdept731@lacourt.org indicating intention to submit on the tentative as directed by the instructions provided on the court website at www.lacourt.org. If the department does not receive an email indicating the parties are submitting on the tentative and there are no appearances at the hearing, the motion may be placed off calendar. If a party

submits on the tentative, the party's email must include the case number and must identify the party submitting on the tentative. If the parties do not submit on the tentative, they should arrange to appear remotely.